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TITLE 16. ECONOMIC REGULATION

PART 4. TEXAS DEPARTMENT OF LICENSING AND REGULATION

CHAPTER 83. BARBERS AND COSMETOLOGISTS

§83.77. Remote Service Business Responsibilities.

(a) A person or entity licensed under this chapter may not operate a remote service business without first:

- (1) providing, in a manner prescribed by the department, notice of the licensee's intent to operate a remote service business;
- (2) providing a permanent mailing address for the remote service business; and
- (3) verifying that the remote service business complies with the requirements of the Act and this chapter.

(b) Only licensed practitioners may perform digitally prearranged remote services.

(c) A remote service business must comply with the requirements of the Act, this chapter, and all health and safety requirements, as applicable.

(d) A remote service business may not offer a barbering or cosmetology service that requires treating or removing a person's hair by:

- (1) coloring;
- (2) processing;
- (3) bleaching;
- (4) dyeing;
- (5) tinting; or
- (6) using a cosmetic preparation.

(e) A remote service business may offer only the following barbering or cosmetology services:

(1) haircutting, hairstyling, or weaving a person's hair by thread and needle or attaching by clamps or glue;

(2) arranging, beautifying, shaving, styling, or trimming a person's mustache or beard;

(3) beautifying a person's face, neck, or arms using antiseptic, tonic, lotion, powder, oil, clay, or cream;

(4) removing superfluous hair on the face using tweezers;

(5) massaging, cleansing, and treating a person's hands or feet for polish change manicures and pedicures, and non-whirlpool foot basin pedicures only; and

(6) applying semi-permanent, thread-like extensions composed of single fibers to a person's eyelashes.

(f) A remote service business may not offer portable whirlpool foot spa pedicures.

(g) A licensed practitioner performing digitally prearranged remote services must practice within the scope of the practitioner's license and may only provide the services specifically authorized by this section.

(h) A remote service business must provide through the entity's digital network prior to any digitally prearranged remote service being performed:

(1) the following information regarding the practitioner who will perform the service:

(A) the person's first and last name;

(B) the person's license number; and

(C) a photograph of the person who will be performing the remote services;

(2) the following information regarding the business:

(A) internet website address; and

(B) telephone number; and

(3) the department's internet website address and telephone number and notice that the client may contact the department to file a complaint against the remote service business or practitioner performing the service.

(i) A remote service business must maintain records and information showing compliance with this chapter and the Act until at least the fifth anniversary of the date the record was generated.

(j) A practitioner who provides digitally prearranged remote services is responsible for the services provided.

(k) A remote service business must terminate a practitioner's access to the business's digital network if the remote service business or department determine there has been a violation of:

(1) this chapter; or

(2) the Act.

(l) Before a practitioner provides a digitally prearranged remote service, the remote service business and the practitioner must ensure that all implements and supplies have been cleaned, disinfected, and sanitized or sterilized with department-approved disinfectants and in accordance with the requirements of the Act and this chapter.

(m) A remote service business and a practitioner performing remote services must ensure compliance with all safety and sanitation requirements related to the digitally prearranged remote services being provided and in accordance with the Act and this chapter.

(n) A remote service business must maintain accurate records and information showing compliance with this chapter and the Act and must make these records available to the department upon request.